

Court No. - 55

Case :- CRIMINAL MISC. WRIT PETITION No. - 13864 of 2013

Petitioner :- Sri Mandir

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sushil Kumar Pandey

Counsel for Respondent :- Govt. Advocate, Nripendra Mishra

Hon'ble Surendra Singh, J.

Hon'ble Mushaffey Ahmad, J.

Heard learned counsel for the petitioner as well as learned A.G.A. appearing for the State and Sri Nripendra Mishra, learned counsel appearing on behalf of the U.P. Power Corporation.

We have been taken through the allegations contained in the F.I.R. and the material on record.

Learned counsel for Power Corporation submits that Rs. 25,000 /- is due against the petitioner as compounding charges.

It is submitted by the learned counsel for the petitioner that the petitioner is ready to make payment of Rs 25,000/- /- within three weeks from today.

Learned counsel for the Power Corporation prays for and is allowed two weeks' time to file counter affidavit. Learned A.G.A. may also file counter affidavit within the same period. Rejoinder affidavit, if any, may be filed within one week thereafter.

List this matter after expiry of the aforesaid period.

Till the next date of listing or till submission of charge-sheet, whichever is earlier, the arrest of the petitioner, namely, Sri Mandir who is wanted in case crime nos. 196 of 2013 and 194 of 2013 to 198 of 2013 under section 135 Electricity Act, P.S. Mansoorpur, District Muzaffarnagar shall remain stayed of course subject to the condition that the petitioner deposits the above-mentioned amount within the stipulated period and in case of default, the benefit of this order will not be extended to the petitioner.

However, it is made clear that this order will have no effect on realization of Electricity Charges due against the petitioner and the amount so deposited by him will be adjusted at the time of final settlement between the parties.

Order Date :- 11.7.2013

Mt/

Court No. - 35

Case :- CRIMINAL MISC. WRIT PETITION No. - 13864 of 2013

Petitioner :- Sri Mandir

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sushil Kumar Pandey

Counsel for Respondent :- Govt. Advocate, Nripendra Mishra

Hon'ble V.K. Shukla, J.

Hon'ble Virendra Vikram Singh, J.

Heard learned counsel for the petitioner and learned A.G.A. for the State.

Petitioner has approached this Court with a request to quash the First Information Report dated 20.6.2013 registered as Case Crime No. 196 of 2013 (Case Crime No. 194 of 2013 to 198 of 2013), under Section 135 of Electricity Act at Police Station - Mansoorpur, District - Muzaffarnagar.

This Court has the occasion to peruse the F.I.R. and the F.I.R. in question does disclose a cognizable offence, in view of this, there is no occasion for this Court to quash the F.I.R., as has been prayed on behalf of petitioner, as such, prayer made on the said score is refused by this Court.

Learned counsel for the petitioner contended that the offence in question, as has been alleged to have been committed by the petitioner, is under Section 135 of the Electricity Act and for the same even if the charges are found to be proved sentence of more than 7 years cannot be awarded and, in view of this, mechanically arrest should not be effectuated by the police personnel. Learned counsel for the petitioner next contended that the offence in question, as has been alleged to have been committed by the petitioner, is compoundable also.

The fact of the matter is that till date arrest has not been effectuated and this is mere apprehension of the petitioner that he would be arrested in breach of provisions as contained under Section 41(1)(b) read with Section 41-A of the Cr.P.C. Once there is statutory provision provided for, then it is always expected that the said provisions would be adhered to and in case there is any violation of the same, complaint can also be made before the Magistrate concerned to remedy the situation and if petitioner's offence is compoundable, he may seek his remedy as provided under the provisions of Electricity Supply Code, 2005.

In view of above, it is hereby directed that in case arrest of petitioner is to be effectuated and the offence, in which he is wanted, will not entail sentence of more than 7 years, then in that event concerned police personnel should deal with the matter in compliance of the provisions as contained under Section 41(1)(b) read with Section 41-A of the Cr.P.C.

Writ petition stands disposed of.

Order Date :- 12.11.2014

Shekhar